Leave Policy

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Field	Detail
Document reference	BM-HR-POL-001
Version	3.1
Effective date	1 January 2025
Policy owner	Human Resources Department
Supersedes	Version 3.0 (1 January 2024)

1. Purpose

This policy sets out the types of leave available to employees of Binaan Maju Sdn Bhd ("the Company"), how much leave each employee is entitled to, and how leave is applied for and approved.

2. Scope

2.1 This policy applies to all permanent employees, including employees on probation, at the head office in Kuala Lumpur, the regional offices (Johor Bahru, Penang, Kota Kinabalu and Kuching) and all project sites.

2.2 Contract staff and interns receive the leave stated in their contract or internship letter. Where the contract is silent, this policy applies on a pro-rated basis.

2.3 Where this policy refers to grades, it means the Company's job grades: Non-Executive (NE1 to NE4), Executive (E1 to E3), Manager (M1 and M2) and Senior Management (SM).

3. Leave Year and Applications

3.1 The leave year runs from 1 January to 31 December.

3.2 All leave must be applied for through the MyHR portal. Annual leave of more than two consecutive working days must be applied for at least seven calendar days in advance. Shorter leave should be applied for at least one working day in advance.

3.3 Leave is approved by the employee's immediate superior. For site-based employees, the Project Manager must also confirm that site manning levels are not affected.

3.4 Leave taken without approval is treated as unpaid absence and may lead to disciplinary action under the Code of Conduct.

4. Annual Leave

4.1 Annual Leave Entitlement

Annual leave depends on job grade and on completed years of service on 1 January of the leave year.

Completed years of service	NE grades	E grades	M and SM grades
Less than 2 years	12 days	14 days	18 days
2 years to less than 5 years	14 days	16 days	20 days
5 years and above	18 days	20 days	22 days

Entitlement is counted in working days. Rest days and public holidays that fall within a period of annual leave are not deducted from annual leave.

4.2 Leave During Probation

4.2.1 Employees on probation earn annual leave at the rate of one-twelfth of their yearly entitlement for each completed month of service.

4.2.2 Probationers may take the leave they have earned so far, subject to approval. Taking leave before it has been earned is not allowed during probation.

4.2.3 Earned but untaken leave carries over into the confirmed period. It is not lost on confirmation.

4.3 Carry Forward of Annual Leave

Up to five (5) days of unused annual leave may be carried forward into the next leave year. Carried-forward leave must be used by 30 June of that year, and any carried-forward days not used by then are forfeited. Days above the five-day limit are forfeited on 31 December, unless the Head of Department (HOD) has approved a written exception because the employee could not take leave for operational reasons.

Amendment (version 3.1, 1 January 2025): The carry-forward limit was increased from three (3) days to five (5) days. The 30 June deadline is unchanged.

4.4 Encashment of Unused Annual Leave

Unused annual leave is not paid out in cash while the employee remains in service. On resignation or termination, earned but untaken annual leave may be paid out at the employee's daily rate of basic salary, or offset against the notice period, at the Company's discretion. Leave forfeited under section 4.3 cannot be encashed.

4.5 Joining or Leaving Part-Way Through the Year

Employees who join or leave during the leave year receive annual leave pro-rated by completed months of service in that year. Fractions are rounded to the nearest half day.

5. Medical Leave

5.1 Sick Leave (Outpatient)

5.1.1 An employee who is unwell and certified unfit for work by a registered medical practitioner receives paid sick leave as follows:

Completed years of service	Paid sick leave per year
Less than 2 years	14 days
2 years to less than 5 years	18 days
5 years and above	22 days

5.1.2 The employee must inform their immediate superior before 10:00 a.m. on the first day of absence, by phone or message.

5.1.3 The medical certificate (MC) must be uploaded to MyHR within 48 hours of returning to work. Absence without a valid MC is treated as unpaid absence.

5.2 Hospitalisation Leave

An employee who is admitted to hospital, or who is certified by a doctor as needing hospitalisation, receives up to 60 days of paid hospitalisation leave per year. This 60-day limit includes any sick leave taken under section 5.1 in the same year. Hospitalisation leave is not added on top of sick leave.

Day surgery, and recovery leave certified by the treating hospital, count as hospitalisation leave.

5.3 Medical Certificates from Non-Panel Clinics

MCs issued by any registered medical practitioner are accepted for sick leave, whether or not the clinic is on the Company's panel. Whether the cost of the visit is reimbursed is a separate question, covered by the Medical Claims Policy (BM-HR-POL-002), section 3.3.

6. Family-Related Leave

6.1 Maternity Leave

Female employees are entitled to 98 consecutive days of paid maternity leave for each confinement. Leave may start up to 30 days before the expected delivery date. Employees should notify HR at least 60 days before the planned start of maternity leave.

6.2 Paternity Leave

Married male employees with at least 12 months of service are entitled to seven (7) consecutive days of paid paternity leave for each birth, up to a maximum of five births during their employment with the Company. The leave must be taken within 30 days of the birth.

Amendment (version 3.1, 1 January 2025): Paternity leave was increased from three (3) days to seven (7) days.

6.3 Compassionate Leave

Death of	Paid compassionate leave
Spouse, child, parent or parent-in-law	3 days
Sibling or grandparent	1 day

Compassionate leave must be taken within 7 days of the death. Employees working in Sabah or Sarawak whose family member died in Peninsular Malaysia, or the other way round, may receive 2 additional days of travelling time with HOD approval.

6.4 Marriage Leave

Employees receive three (3) days of paid marriage leave, once during their employment, on producing a copy of the marriage certificate.

7. Emergency Leave

7.1 Emergency leave is for unexpected situations that need the employee's immediate attention, such as a flood at home, a sick child, or a vehicle breakdown on the way to work.

7.2 Up to three (3) days of emergency leave may be taken in a leave year. Emergency leave is deducted from the employee's annual leave balance. It is not additional leave.

7.3 The employee must inform their immediate superior as soon as possible, and no later than 10:00 a.m. on the day, and apply in MyHR within two working days after returning.

Note: Clause 7.4 (unpaid emergency leave for probationers) was deleted in version 3.0. Probationers now follow section 4.2.

8. Unpaid Leave

Unpaid leave of up to 30 calendar days in a leave year may be approved by the HOD and HR where the employee has used all of their annual leave. Unpaid leave of more than 30 days needs approval from the Head of Human Resources. Employees on unpaid leave do not earn annual leave for that period.

9. Public Holidays

9.1 The Company observes 11 paid public holidays each year. HR publishes the public holiday calendar for each office and state in December for the following year.

9.2 Site-based employees follow the public holidays of the state where their site is located.

9.3 If a public holiday falls on a rest day, the next working day is a paid holiday.

9.4 Work on a public holiday is paid or compensated under the Overtime Policy (BM-HR-POL-003), section 5.

10. Amendment History

Version	Effective date	Summary of changes
1.0	1 March 2019	First issue.
2.0	1 January 2022	Emergency leave introduced (section 7).
3.0	1 January 2024	Leave during probation revised (section 4.2); clause 7.4 deleted.
3.1	1 January 2025	Carry-forward limit raised from 3 to 5 days; paternity leave raised from 3 to 7 days.